

**PLACER COUNTY SUPERIOR COURT**  
**THURSDAY, CIVIL LAW AND MOTION**  
**DEPARTMENT 3**  
**THE HONORABLE MICHAEL W. JONES**  
**TENTATIVE RULINGS FOR MAY 14, 2026, AT 8:30 A.M.**

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Cal.App.5th 825, 836–38; *Della Shaker v. Mercedes-Benz USA LLC et al* (C.D. Cal., Apr. 17, 2026, No. 2:25-CV-08732-SVW-MAR) 2026 WL 1182812, at \*2.)

Here, defendant meets its burden to show that plaintiff cannot establish the parties were in privity when plaintiff purchased the vehicle. (UMF Nos. 2–8.) Accordingly, the burden shifts to plaintiff to raise a triable issue of material fact.

Plaintiff does not thereafter meet their burden to raise a triable issue of material fact.

The violation of the Federal Magnuson-Moss Warranty Act cause of action thereafter fails as a matter of law because there are no state law claims to attach to. (*Clemens v. DaimlerChrysler Corp.* (9th Cir. 2008) 534 F.3d 1017, 1022.)

Plaintiff’s request for the court to treat the motion for summary judgment as a motion for judgment on the pleadings is denied because defendant is not challenging the sufficiency of the pleadings in its motion for summary judgment. (*Los Angeles Unified School Dist. v. Torres Construction Corp.* (2020) 57 Cal.App.5th 480, 493.)

Accordingly, defendant’s motion for summary judgment is granted.

**13. S-CV-0054742      SOUZA, EVAN v. EHEALTH INSURANCE SERVICES**

Defendant’s Motion to Compel Arbitration and Stay Proceedings

A request to compel arbitration under the FAA may be brought in state court. (*Southland Corp. v. Keating* (1984) 465 U.S. 1, 16; *Main v. Merrill Lynch, Pierce, Fenner & Smith, Inc.* (1977) 67 Cal.App.3d 19, 24, disapproved of on other grounds in *Rosenthal v. Great Western Financial Securities Corp.* (1996) 14 Cal.4th 394.) The arbitration statutes evidence a strong public policy in favor of arbitration that is frequently approved and enforced by the courts. (*Madden v. Kaiser Foundation Hospitals* (1976) 17 Cal.3d 699, 706; *Laswell v. AG Seal Beach, LLC* (2010) 189 Cal.App.4th 1399, 1405.) The FAA governs a contractual arbitration where there is a written contract involving interstate or foreign commerce or maritime transactions. (9 U.S.C. §§1, 2.) Where the parties incorporate the FAA into the agreement, the FAA governs a party’s request to compel arbitration. (*Victrola 89, LLC v. Jaman Properties 8 LLC* (2020) 46 Cal.App.5th 337, 346.)

A threshold question for any motion to compel arbitration is whether an agreement to arbitrate exists between the parties. (*Cruise v. Kroger Co.* (2015) 233 Cal.App.4th 390, 396.) Defendant carries this initial burden of proving, by a preponderance of the

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evidence, the existence of a valid arbitration agreement. (*Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 972.) A party opposing a motion to compel arbitration then “bears the burden of proving by a preponderance of the evidence any fact necessary to its defense” including evidence challenging the acceptance of the agreement. (*Ruiz v. Moss Bros. Auto Group, Inc.* (2014) 232 Cal.App.4th 836, 842; *Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 165.) If the opposing party meets its burden of production, then the moving party must establish with admissible evidence a valid arbitration agreement. (*Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 165–66.) “[A] party cannot be required to submit to arbitration any dispute which he has not agreed so to submit.” (*AT&T Technologies v. Communications Workers* (1986) 475 U.S. 643, 648; see *Cronus Investments, Inc. v. Concierge Svcs.* (2005) 35 Cal.4th 376, 384–85.)

In the employment context, as here, the California Supreme Court set forth five minimum requirements for enforcement of an arbitration agreement: (1) provide for a neutral arbitrator; (2) provide for more than minimal discovery; (3) require the arbitrator to issue a written decision; (4) provide for the same remedies that would otherwise be available to the employee in court; and (5) not require the employee to bear costs unique to arbitration. (*Armendariz v. Foundation Health Psychcare Servs., Inc.* (2000) 24 Cal.4th 83, 102–03.)

Defendant meets its initial burden to prove the existence of a valid arbitration agreement between the parties. (Rangarajan, Ex. D.) Moreover, defendant establishes the arbitration agreement meets the *Armendariz* factors.

Plaintiff contends the arbitration agreements is unconscionable. To establish the defense of unconscionability, both procedural and substantive unconscionability must be shown. (*OTO, L.L.C. v. Kho* (2019) 8 Cal.5th 111, 125.) However, courts evaluate unconscionability on a sliding scale whereby a greater showing of procedural unconscionability requires a lesser showing of procedural unconscionability and vice versa. (*Ibid.*)

Courts determine whether an arbitration agreement is procedurally unconscionable first by determining whether the contract is one of adhesion. (*OTO, L.L.C. v. Kho* (2019) 8 Cal.5th 111, 126.) If a contract is one of adhesion, then it contains “some degree of procedural unconscionability and requires [the court] to scrutinize the substantive terms of the contract to ensure they are not manifestly unfair or one-sided.” (*Fisher v. MoneyGram Intern., Inc.* (2021) 66 Cal.App.5th 1084, 1095.)

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Substantive unconscionability, on the other hand, looks at the fairness of a contract's terms. (*OTO, L.L.C. v. Kho* (2019) 8 Cal.5th 111, 129.) Terms of a contract are substantively unconscionable if they "impair the integrity of the bargaining process or otherwise contravene the public interest or public policy or attempt to impermissibly alter fundamental legal duties." (*Id.* at 130 [internal quotation marks omitted].)

First, plaintiff establishes a modicum of procedural unconscionability because the arbitration agreement is one of adhesion as it was a condition precedent to his employment. (*Roman v. Superior Court* (2009) 172 Cal.App.4th 1462, 1470.)

Plaintiff, however, does not meet his burden to establish the arbitration agreement is substantively unconscionable.

Plaintiff also argues defendant waived their right to arbitration. To establish the defense of waiver, plaintiff bears the burden to prove by clear and convincing evidence that defendant knew of the arbitration right and intentionally relinquished or abandoned it. (*Quach v. California Commerce Club, Inc.* (2024) 16 Cal.5th 562, 584.) "[I]ntentional relinquishment or abandonment of the right may be proved by evidence of words expressing an intent to relinquish the right or of conduct that is so inconsistent with an intent to enforce the contractual right as to lead a reasonable factfinder to conclude that the party had abandoned it." (*Ibid.*) Plaintiff must show it is highly probable the facts that support waiver are true. (*Ibid.*)

Plaintiff does not present clear and convincing evidence that defendant waived their right to arbitration in light of defendant's repeated invocation of its right to arbitration.

Based on the foregoing, defendant made a sufficient showing of a valid and enforceable agreement to arbitrate between the parties and no defense to enforcement applies. Accordingly, defendant's motion to compel arbitration is granted.

Plaintiff's representative PAGA claims are stayed pending completion of arbitration.

The court schedules this matter for an Order to Show Cause re status of arbitration on **Monday, November 23, 2026, at 3:30 p.m. in Department 40.**

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